

REVENUE AND FORESTS DEPARTMENT

Mantralaya, Madam Cama Marg, Hutatma Rajguru Chowk
Mumbai 400 032, Dated 1st February 2024.

NOTIFICATION

MAHARASHTRA STAMP ACT.

No. Mudrank-2023/UOR. No. 20/CR. 602/M-1 (Policy).—Whereas, the Government of Maharashtra has *vide* Government Resolution, Industries, Energy and Labour Department, No.ITP-2021/CR-170/Ind-2, dated the 27th June 2023, declared the New Information Technology and Information Technology Enabled Services Policy of Maharashtra State-2023 (hereinafter referred to as “the said IT/ITES Policy-2023”);

And Whereas under the said policy, the Government of Maharashtra has declared to provide *inter alia* fiscal incentives in the form of full or partial waiver of stamp duty for the eligible new and expansion or diversification units or projects related to Information Technology or Information Technology Enabled Services, Animation, Visual Effects, Gaming and Comics (AVGC) units, Data Centers and Emerging Technology Units, (hereinafter referred to as “the said IT/ITES Unit”) as mentioned in the said IT/ITES Policy-2023 ;

Now, therefore, in exercise of the powers conferred by clause (a) of section 9 of the Maharashtra Stamp Act (LX of 1958) (hereinafter referred to as “the said Act”) the Government of Maharashtra, being satisfied that it is necessary to do so in the public interest, hereby reduces or remits the stamp duty to the extent as specified in clause (3) of the Schedule appended hereto, chargeable under various Articles of the Schedule- I appended to the said Act, on the instruments specified in column (4) thereto of the eligible category of units or projects specified in column (2) thereof as per the said IT/ITES Policy-2023, for the period commencing on the 27th June 2023 and ending on the 26th June 2028 (inclusive of both days) or for the currency of the said IT/ITES Policy, subject to the following conditions, namely :—

Conditions :—

(1) Any IT/ITES Unit failing to start the activities for which the reduction or remission is granted or commits breach of any of the conditions of the Maharashtra State IT/ITES Policy, 2023 shall be liable to pay the stamp duty and penalty, as if, there was no reduction or remission from the beginning.

(2) For the IT/ITES unit seeking stamp duty exemption under this policy, it will be essential to verify whether the unit under consideration has availed or not availed any stamp duty exemption, under any other Policies of Government of Maharashtra issued in this behalf. It will be compulsory to submit ‘No Objection Certificate’ from the Competent Authority of Industries Department in this regard.

(3) No refund shall be granted where full or proper stamp duty has already been paid by any of the IT/ITES Units, prior to the date of publication of this Order in the *Maharashtra Government Gazette*.

(4) The benefit of stamp duty remission or reduction under this Order is applicable in the zones specified in the Schedule appended hereto.

(5) The IT/ITES Unit which has availed for the remission reduction of stamp duty under this Order shall not be entitled for remission or reduction of stamp duty for the same transaction as per any other Order or Policy.

(6) Any IT/ITES Unit who is party to the document specified in column (4) of the Schedule appended hereto for which the remission or reduction in the stamp duty is granted under this Order and who fails to fulfill the purpose or objectives of the said IT/ITES Policy-2023 or commits breach of any of the conditions as specified in this Order, shall be liable to pay the whole stamp duty and penalty, if any, as if there was no remission or reduction in stamp duty from the beginning.

(7) The Competent Authority as specified in the said IT/ITES Policy-2023 must convey to the Inspector General of Registration and Controller Stamps, Maharashtra State, Pune on regular basis the names and details of the units which have availed of remission or reduction of the stamp duty under this Order but has failed to fulfill the purpose or objectives of the said IT/ITES Policy-2023 or committed breach of any of the conditions specified in this Order.

(8) Any IT/ITES Unit will be eligible to avail stamp duty exemption under this Order only for the premises which has valid Commencement Certificate or RERA Approval from the concerned Planning Authority or Competent Authority.

(9) Any IT/ITES Unit in production or operation, shifting from one location to another and this unit had already availed of stamp duty exemption earlier, will not be eligible for stamp duty exemption under this Order.

(10) If any existing IT/ITES Unit makes minimum 25% additional fixed capital investment on or after commencement of this policy in IT/ITES or AVGC activity or DATA Center or Emerging Technology, such unit will be considered as expansion or diversification unit and it will be eligible for stamp duty exemption under this Order.

Explanation.—

(1) “The Maharashtra IT/ITES Policy, 2023” means the Maharashtra IT/ITES Policy, 2023 declared by the Government, *vide* the Government Resolution, Industries, Energy and Labour Department, No. ITP-2021/CR-170/Ind-2, dated the 27th June 2023.

(2) “IT/ITES unit” means the Information Technology Unit (IT Unit) or Information Technology Enabled Services Units (ITES Units), Data Centers, Animation, Visual Effects, Gaming and Comics (AVGC) and Emerging Technology Units so certified by the Competent Authority or any other officer authorized by it in this behalf, as such unit.

(3) The benefit of stamp duty reduction or remission provided by this Order shall not apply to the instrument or documents of transfer of acquired land or any type of movable or immovable property by way of lease or conveyance or assignment of lease rights or sale certificate executed between the eligible IT/ITES unit and the subsequent unit under the said IT/ITES Policy-2023.

(4) Further transactions between the eligible IT/ITES unit and the subsequent or the next unit under the said IT/ITES Policy-2023 shall not be eligible for the remission or reduction in the stamp duty under this Order. Thus unit to unit transaction shall not be eligible for stamp duty remission or reduction under this Order.

(5) The words and expressions used in column (2) of the Schedule appended hereto shall have the meanings assigned to them under “the Maharashtra IT/ITES Policy, 2023.”

SCHEDULE

Sr. No. (1)	Type of project/industry/ units and Zone (2)	Extent of Remission (3)	Type of Instruments under Articles of the Schedule I of the Act (4)
1.	New IT/ITES Units, AVGC and Emerging Technology Units and expansion of existing units in Public or Private IT parks out of Zone I of the State.	100%	Hypothecation, Pawn, Pledge, Deposit of Title Deeds (Article-6), Conveyance (Article-25), Charge on Mortgage Property (Article-33), Lease (Article-36), Mortgage Deed (Article-40) and Security Bond on Mortgage Deed (Article-54).
2.	New IT/ITES Units, AVGC and Emerging Technology Units and expansions of existing units in Public IT parks in Zone I of the State.	75%	Hypothecation, Pawn, Pledge, Deposit of Title Deeds (Article-6), Conveyance (Article-25), Charge on Mortgage Property (Article-33), Lease (Article-36), Mortgage Deed (Article-40) and Security Bond on Mortgage Deed (Article-54).

Sr. No. (1)	Type of project/industry/ units and Zone (2)	Extent of Remission (3)	Type of Instruments under Articles of the Schedule I of the Act (4)
3.	New IT/TTES Units, AVGC and Emerging Technology Units and expansions of existing units in Private IT parks in Zone I of the State.	50%	Hypothecation, Pawn, Pledge, Deposit of Title Deeds (Article-6), Conveyance (Article-25), Charge on Mortgage Property (Article-33), Lease (Article-36), Mortgage Deed (Article-40) and Security Bond on Mortgage Deed (Article-54).
4.	New IT/ITES Units, AVGC and Emerging Technology Units and expansions of existing units in IT parks in Special Economic Zone, Units in IT Special Economic Zone and Software Technology Park of India approved registered units.	100%	Hypothecation, Pawn, Pledge, Deposit of Title Deeds (Article-6), Conveyance (Article-25), Charge on Mortgage Property (Article-33), Lease (Article-36), Mortgage Deed (Article-40), Security Bond on Mortgage Deed (Article-54) and Assignment of Lease (Article-60).
5.	On Merger, de-merger, and reconstruction of registered IT/ ITES units, AVGC and Emerging Technology Units throughout the State.	75%	Merger, de-merger, and reconstruction. (Article-25 (da)), Leave and Licence Agreement (Article-36A) and Assignment of Lease (Article -60).
6.	For purchasing land/ premises required for setting up a new data Center and for its expansion throughout the State.	100%	Hypothecation, Pawn, Pledge, Deposit of Title Deeds (Article-6), Conveyance (Article-25), Merger, de-merger, and reconstruction (Article-25(da)), Charge on Mortgage Property (Article-33), Lease (Article-36), Leave and Licence Agreement (Article-36A), Assignment of Lease (Article-60), Mortgage Deed (Article-40) and Security Bond on Mortgage Deed (Article-54).

By order and in the name of the Governor of Maharashtra,

SATYANARAYAN BAJAJ,
Deputy Secretary to Government.